

Jeffrey Bernecky
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September 5, 2026

VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED

Office of the Clerk
Monroe County Court
Hall of Justice
99 Exchange Blvd.
Rochester, NY 14614

Re: People v. Bernecky — SORA Risk-Level Classification Hearing,
September 11, 2026, 11:30 a.m.
Index No.: None assigned as of this date

To the Clerk's Office:

I am the respondent in the above matter, appearing without counsel. I am submitting the six documents listed below for filing by certified mail, because I have been unable to get them accepted for filing any other way.

I presented these documents in person and was told the Court does not accept filings from unrepresented parties, and that I should either retain or be assigned an attorney, or bring the documents to the hearing itself. I called your office again to ask that they be accepted, and was told the same thing.

I do not believe either reason is a lawful basis to refuse them. CPLR 2102(c) provides that "a clerk shall not refuse to accept for filing any paper presented for that purpose except where specifically directed to do so by statute or rules promulgated by the chief administrator of the courts, or order of the court." New York courts enforce that duty directly against a clerk who declines to accept papers on a ground the rule does not authorize. In *Gehring v. Goodman*, 25 Misc. 3d 802, 2009 NY Slip Op 29351 (Sup. Ct., N.Y. Cnty. Aug. 26, 2009, Braun, J.), the court granted a CPLR article 78 petition compelling the New York County Clerk to accept papers for filing, holding that a clerk has no discretion to reject a paper offered for filing except on a ground specifically set out by statute, rule, or court order. The Uniform Rules for the New York State Trial Courts state the only grounds on which a clerk may refuse papers presented for filing, see 22 NYCRR 202.5(d)(1) — a missing index number, a defective caption, filing in the wrong court, an improperly signed paper, or certain e-filing defects. A party's status as unrepresented is not among them; that same rule instead accommodates unrepresented litigants by excusing them from the

electronic-filing notice otherwise required of represented parties. See 22 NYCRR 202.5(d)(1)(v).

A missing index number is one of the listed grounds, and I want to address it directly rather than wait for it to be raised. No index number appears on these documents because none has been assigned to this matter by any court office — not because I have failed to obtain or supply one. Your office has told me this results from my underlying conviction having occurred outside Monroe County. A number that the Court itself has not yet assigned is not a defect in my papers, and I do not believe 22 NYCRR 202.5(d)(1) was written to let that absence be held against the one party who has no ability to supply it.

I am asking that the enclosed documents be accepted for filing and entered into the case record, and that I be provided a receipt or file-stamped copy confirming that they have been filed. If your office declines to do so, I am asking that you state the specific statutory or rule-based ground for that refusal in writing, consistent with CPLR 2102(c).

I am enclosing six documents:

1. Memorandum of Law in Support of Respondent's Application for a Downward Departure
2. Certification of Jeffrey Bernecky, with Exhibits A through E (Exhibits at Item 2b)
3. Motion to Adjourn
4. Application for Assignment of Counsel
5. Motion for Forensic Expert Funding Pursuant to County Law § 722-c
6. Demand for Disclosure and, if Necessary, Subpoena Duces Tecum

I am sending an identical set of these documents, with a separate cover letter, directly to the chambers of the Hon. Karen Bailey Turner, J.C.C., and a copy of both letters and their enclosures to the Monroe County District Attorney's Office, by the same method and on the same date. I intend to raise this filing history on the record at the September 11, 2026 hearing if it has not been resolved before then.

Respectfully,

Jeffrey Bernecky
Respondent, Pro Se

Enclosures: as listed above

cc: Hon. Karen Bailey Turner, J.C.C. (duplicate set enclosed under separate cover, same date)

cc: Monroe County District Attorney's Office